Board Policy 1.10.010-P

Role of the Board of Education

I. The mission of ~~the~~ Portland P~~p~~ublic S~~s~~chools ("PPS") is to provide rigorous, high-quality academic learning experiences that are inclusive and joyful and to disrupt racial inequities to create vibrant environments for every student to demonstrate excellence. ~~support all students in achieving their very highest educational and personal potential, to inspire in them an enduring love for learning, and prepare them to contribute as citizens of a diverse, multicultural and international community.~~

II. ~~In order to advance the mission of Portland public schools and discharge its legal and fiduciary responsibilities, t~~The Board of Directors of Portland Public Schools ~~Multnomah County school district No. 1J~~ ("the Board"), is responsible for the conduct and governance of PPS schools. ~~as duly elected representatives of the people, shall have charge and control of all activities and programs of the district, including its property, personnel and finances.~~ The Board's role includes:

A. Establishing rules for governing PPS schools and students consistent with State Board of Education rules and with local, state and federal laws.

B. When provided by law, policy, or contract, acting as a fact-finding body or a court of appeals for staff members, students and the public.

C. Appointing a Superintendent and delegating to the Superintendent to establish administrative regulations to implement the Board's policies and goals.

D. Evaluating the Superintendent's performance in accordance with the PPS's adopted mission, core values and strategic objectives.

E. Establishing academic and financial goals for PPS and evaluating the Superintendent's implementation of those goals.

F. Overseeing PPS's financial affairs by authorizing, appropriating and adopting a budget and by proposing tax levy or bond elections, when appropriate and as allowed by law. The PPS budget will provide for program operation and maintenance or acquisition of PPS property, as necessary.

G. Authorizing the Superintendent to approve payment on all contracts and business transactions of PPS in accordance with Board policies on purchasing and budget requirements.

H. Directing the collective bargaining process to establish labor contracts with PPS personnel.

~~The Board publicly deliberates and adopts an annual budget in compliance with budget laws and statutes to ensure the legal expenditure of funds. The Board establishes policies for the conduct and operation of schools and school buildings both for school purposes and for outside activities; establishes curricula and provides for instructional materials; establishes policies governing student eligibility; recruits and hires a superintendent as chief executive and evaluates the performance of the superintendent in accordance with the district's adopted mission, core values and strategic objectives.~~

III. The Board delegates executive, supervisory and instructional functions to the Superintendent but shall retain full legislative authority over PPS~~the schools in the district~~.

A. To distinguish the Board's role from the roles of the Superintendent and staff, the Board concentrates its efforts on:

i. Advocating on behalf of the school district, students, and the constituency it serves in the boardroom, with the legislature, and within the community.

ii. Engaging with students, staff, parents, and community members through receiving feedback and comments that may help guide the Board's decisions.

iii. Providing opportunities for public input on Board policies.

iv. Providing ongoing monitoring of Board policies and goals.

v. Focusing on strategic leadership rather than administrative detail.

Legal References: ~~ORS 327.006:~~ ORS 328.542; ORS 332.072; ORS 332.075; ORS 332.107; ORS 332.155; ORS 332.405; ORS 332.505; ~~ORS 339.030;~~ ORS 339.133

History: Adpt 6/71; Amd 2/6/01; Amd 9/9/02, BA 2417

BBA - Board Powers and Duties

Code: BBA
Adopted: 9/08/07
Readopted: 4/24/17
Orig. Code(s): BBA

The Legislature of the state of Oregon delegates to the Board responsibility for the conduct and governance of schools in the district. The general powers granted to the Board are:

1. **Legislative or Rule-Making Authority**

   In regular or special public meetings, after open discussion and after members' votes are recorded, the Board will establish rules or policy to govern the conduct of its members and the proceedings of the Board.

   The Board shall establish rules for governing schools and students in the district consistent with State Board of Education rules and with local, state and federal laws.

   The Board is responsible for providing adequate and direct means for keeping themselves informed about the needs and wishes of the public and for keeping local citizens informed about the schools.

2. **Judicial Authority**

   As provided by law, policy or contract, the Board acts as a fact-finding body or a court of appeal for staff members, students and the public when issues involve Board policies or agreements and their implementation, and when the Board must determine the rights, duties or obligations of those parties who address the Board.

3. **Executive/Administrative Authority**

   The Board will appoint a superintendent and delegate to the superintendent to establish administrative regulations to implement the Board's policies and goals. The Board will evaluate the superintendent's performance.

   The Board may establish academic and financial goals for the district and evaluate the superintendent's implementation of those goals.

   The Board will oversee the district's financial affairs by authorizing, appropriating and adopting a district budget and by proposing tax levy or bond elections, when appropriate and as allowed by law. The district budget will provide for program operation and maintenance or acquisition of district property, as necessary.

   The Board will authorize the superintendent to approve payment on all contracts and business transactions of the district in accordance with Board policies on purchasing and budget requirements. The Board will provide for an annual audit of the district's assets.

   The Board, through the superintendent, will employ the staff necessary to carry out the educational program. The superintendent or designee will conduct regular evaluations of staff.

   The Board will direct the collective bargaining process to establish labor contracts with the district's personnel. The Board will establish, through the collective bargaining process where appropriate, salaries and salary schedules, other terms and conditions of employment and personnel policies for districtwide application.

END OF POLICY

Legal Reference(s):
ORS 192.630
ORS 243.656
ORS Chapters 279A, 279B and 279C
ORS 294.305 to -294.565
ORS 328.205 to -328.304
ORS 332.072
ORS 332.075
ORS 332.105
ORS 332.107
ORS Chapter 339
ORS 342.805 to -342.937
ORS Chapter 34

Cross Reference(s):
DJ - District Purchasing

Board Job Description

The board represents the community and oversees the superintendent's work by determining and demanding appropriate and excellent district performance.

Each board member shall reside in the zone from which they are elected but shall be elected at large. The board shall adjust the boundaries of the zones, as necessary, to apportion population so that the zones are as nearly equal in population as is feasible according to the latest federal census data.

The board will operate within all legal requirements and is legally responsible for the following:

1. Hiring and evaluating the superintendent

2. Appointing community members to the budget committee and adopting the annual budget

3. Ratifying collective bargaining agreements

To distinguish the board's own unique job from the jobs of the superintendent and staff, the board will concentrate its efforts on the following:

1. Advocating on behalf of the school district, students, and the constituency it serves in the boardroom, with the legislature, and within the community.

2. Engaging with students, staff, parents, and community members through receiving feedback and comments that may help guide decisions facing the board.

3. Providing opportunities for public input on board policies.

4. Developing written governing policies that, at the broadest levels, address the following:
   a. *Results:* Organizational impacts, benefits, and end results for specified recipients and their relative worth (the result desired, for whom, and at what cost)
   b. *Executive Limitations:* Constraints on executive authority that establish the practical, ethical, and legal boundaries within which all staff activity and decision-making will take place and be monitored
   c. *Governance Process:* How the board carries out and monitors its own work
   d. *Board-Staff Linkages:* How authority is delegated, and its proper use monitored; the superintendent's role, authority, and accountability

5. Providing ongoing monitoring of board policies.

6. Ensuring board performance through annual review of board policies and goals.

Monitoring Method: **Board Self-assessment**
Monitoring Frequency: **Annually**

Salem-Keizer Public Schools does not discriminate on the basis of race, color, religion, sex, sexual orientation, national origin, marital status, age or disability in its programs and activities.